

24STCV10521 24STCV10521

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-08-19

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Case Number: 24STCV10521 Hearing Date: August 19, 2026 Dept: 735

Victor Manuel Aguilar, et al. v.

Peterson 24 Asset LLC, et al.

Motion to Deem Request for Admissions Admitted

On

February 17, 2026, Defendant propounded upon Plaintiffs, Request for Admissions, Set One. (Kashefipour Decl., ¶ 3; Exhs. B-C.) Responses were due by March 23, 2026. Plaintiff did not provide timely responses. Thus, defendants on April 26, 2026, filed their motion to deem requests for admission admitted. After defendants filed their motion, Plaintiffs served on May 1, 2026, verified responses to the subject Request for Admissions on May 1, 2026, making the motion moot. (Avakian Decl., ¶ 3; Ex. A.)

Plaintiff

contends the action as well as this motion are stayed and not properly before this Court because Defendant filed a notice under Insurance Code § 1063.6 staying this action pending the liquidation of her insurance carrier's assets. However, the notice states that the case would be stayed for 60 days after the entry of the order of the liquidation, which was on June 10, 2026. Sixty days from June 10, 2026, is August 9, 2026. Thus, based on the notice, the case is no longer stayed.

Defendant

seeks \$690 in sanctions against Plaintiffs and counsel of record. Plaintiff opposes sanctions because, according to plaintiff, defendant did not properly serve the discovery on plaintiff's case coordinator or legal secretaries who are charged with calendaring all deadlines to ensure they are met which is why responses

were not timely served. (Avakian Decl., ¶ 4; see Kashefipour Decl., Exh. A.) Counsel was included in the service list. Code of Civil Procedure §1010.6 does not say that the legal secretaries or case coordinator must be included in the service list. Thus, there was proper service.

CONCLUSION

The
court denies as moot Defendant's motion to deem request for admissions admitted.

Plaintiff
is ordered to pay \$690 in attorney's fees as sanctions within 30 days.

Defendant
shall give notice.